

LAW AND MOTION TENTATIVE RULINGS

DATE: JUNE 25, 2026 TIME: 8:30 A.M.

No. 25CV00829

TD BANK, N.A. v. McDONALD

**(UNOPPOSED) PLAINTIFF TD BANK, N.A.'S MOTION TO DEEM ITS
REQUESTS FOR ADMISSION ADMITTED AND FOR MONETARY
SANCTIONS**

The unopposed motion is granted. The Court deems admitted all matters specified in the requests for admission, set one. (Code Civ. Proc., § 2033.280, subd. (b).) This will be the order of the Court unless defendant serves, before the hearing on the motion, a proposed response to the requests for admissions that is in substantial compliance with Code of Civil Procedure section 2033.220.

“If a party to whom requests for admission have been directed fails to serve a timely response, the requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction pursuant to Section 2033.030 of the Code of Civil Procedure.” (Code Civ. Proc., § 2033.280, subd. (b).) Monetary sanctions are mandatory if requested. (Code Civ. Proc., § 2033.280, subd. (c).)

Plaintiff TD Bank, N.A. demonstrated it served a set of requests for admission on defendant Raymondo McDonald Jr. on January 30, 2026. No responses have been served to date. (Chen Declaration, ¶¶ 2-4, Exhibit 1.) Defendant also failed to file any opposition to this motion, despite a record of proper service.

Sanctions are imposed against defendant in the amount of \$500.00, payable no later than July 31, 2026.